

Power of Interest

Conflict of Interest Policy

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Approved by: Alison Zhao

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The guidelines on managing conflict of interest are contained in our articles of association and will be followed at all times, as will the guidance issued by the Commission listed at the end of this policy.

We manage conflicts using a consistent process: (1) Identify, (2) Declare, (3) Consider removing the conflict, (4) Manage the conflict so it cannot affect the decision, and (5) Record what was decided and how the conflict was handled.

Conflicts of Interest

The Board will make decisions based only on what's best for the Company. We do not allow personal interests, or the interests of people or organisations connected to board members, to influence these decisions.

There are 2 common types of conflict of interest:

- **Financial conflicts** - when a trustee, or person or organisation connected to them, could get money or something else of value from a trustee decision. This does not include the payment of expenses.
- **Loyalty conflicts** - other reasons, a board member might not be able to make decisions that are best for the company.

Generally, a potential conflict of interest will occur when a board member has a connection to another organisation or person that we have a financial, or other working arrangement with, either as:

- Family – his or her partner, child, ‘ wider relatives, friends etc or:
- Organisation – as a trustee, board member, member of staff or similar.

Meetings

Conflicts of Interest is a standing item on all board and committee agendas; the chairman will remind directors at the start of each meeting that any interests must be declared.

A record of any professional or personal interest that may make it difficult for a director to fulfil their duties impartially, or may create an appearance of impropriety, with any item on the agenda for that day’s meeting is to be noted in the minutes of the meeting. Specifically:

- If a director is in any way, directly or indirectly, interested in a proposed transaction or arrangement with the organisation, s/he must declare the nature and extent of that interest to the other directors. The conflicted director should: declare, leave the discussion, not take part in the decision, and not be counted in the quorum.

- If a declaration of interest proves to be or becomes inaccurate or incomplete, a further declaration must be made.
- Any required declaration of interest must be made before the organisation enters into the transaction or arrangement.
- A declaration is not required in relation to an interest of which the director is not aware or where the director is not aware of the transaction or arrangement in question. For this purpose a director is treated as being aware of matters of which s/he ought reasonably to be aware.

If a director states a conflict of interest s/he will normally be requested to leave the meeting while the relevant agenda item is discussed.

Potential Conflicts of Interest

A company may, where it has the proper legal authority, pay a director or provide other material benefits to a director in return for the provision of goods or services to the company, where the trustee board reasonably believes this to be in the company's best interests. Any such goods or services must be provided in addition to the director's normal trustee duties. Each proposal will be considered on a case-by-case basis and may only be approved where it complies with the company's articles of association, relevant statutory powers, and current Charity Commission guidance. A trustee who stands to receive a payment or benefit must not take part in any discussion or decision relating to that matter and must not be counted towards quorum.

Where an individual is not involved in the decisionmaking process, there may be no direct conflict of interest. However, where a trustee has a personal, professional or organisational connection with another party involved, a perceived conflict of interest may arise. Directors must

manage both actual and perceived conflicts carefully, as perceptions of undue influence can undermine confidence that decisions have been taken solely in the company's best interests.

Managing Conflicts of Interest

To manage these issues, the Board will ask themselves the following questions:

- Is this the best use we might make of our limited resources?
- If so, might anyone else be able to provide this service?
- If there are others, in terms of cost, quality, availability etc, who would be the best provider?

Serious/Complex Conflicts

If the conflict is serious or complex (for example, there are not enough unconflicted directors to reach quorum, or the decision involves significant assets, risk or reputational impact), we will consider independent professional advice, recruiting independent directors, or whether resignation is appropriate. If directors cannot manage the conflict, we will seek authority from our company regulator, if required.

Recording Decisions

Conflicts of interest will be recorded in the minutes, together with the key points and decision(s) made, in sufficient detail to enable a reader to understand the issue and the basis on which the decision was made.

The company will maintain a Register of Interests/Conflicts. Directors must provide relevant interests on appointment and confirm/update them at least annually, and whenever circumstances change.